

25STLC05516 25STLC05516

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC05516 Hearing Date: June 29, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Melrose Equities, LLC's (1) Motion for Order

Deeming Admitted Truth of Facts and Imposing Monetary Sanctions; (2) Motion to Compel Initial Responses to Form Interrogatories and Imposing Monetary Sanctions; and (3) Motion to Compel Further Responses to Special Interrogatories and Imposing Monetary Sanctions, are denied.

Plaintiff Melrose Equities, LLC's Motion to Compel Further

Responses to Requests for Production and Imposing Monetary Sanctions, set for hearing on 07/01/2026, is advanced to this date and denied on the same grounds.

Analysis:

Plaintiff Melrose Equities, LLC ("Plaintiff") propounded

Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Admission, Set One, on Defendant Jessica Harvey ("Defendant"), acting in propria persona, on January 7, 2026. (Motions, Hamilton Decl., Exh. A.) Despite a meet and confer effort, Defendant has not served responses with respect to the Requests for Admission, Set One, and Form Interrogatories, Set One. (Id. at ¶¶3-4 and Exh. B.) Defendant also served incomplete responses to the Special Interrogatories, Set One, on March 24, 2026. (Id. at ¶3 and Exh. B.)

On May 8, 2026, Plaintiff filed the instant (1) Motion for

Order Deeming Admitted Truth of Facts and Imposing Monetary Sanctions; (2) Motion to Compel Initial Responses to Form Interrogatories and Imposing Monetary Sanctions; and (3) Motion to Compel Further Responses to Special Interrogatories and Imposing Monetary Sanctions. The Motions were served on Defendant

by first-class mail. No opposition has been filed to date.

Discussion

The discovery requests served on Defendant do not comply with Code of Civil Procedure section 94, which allows only 35 written discovery requests in the Limited Civil Court unless otherwise authorized by court order or by stipulation. (Code Civ. Proc., § 94, subd. (a); § 95.) A review of Plaintiff's filings demonstrates that it served Defendant with 66 requests for admission, 35 form interrogatories, 26 special interrogatories, and 66 requests for production. (Motions, Hamilton Decl., Exh. B.) By serving Defendant with 193 written discovery requests, Plaintiff has exceeded the allowable amount by more than five times. Nor does the record contain any authorizing order or stipulation.

Additionally, the form interrogatories Plaintiff served on Defendant include subparts, which also violates Code of Civil Procedure section 94, subdivision (a)(1).

Based on the foregoing, the instant discovery Motions are denied. The Court will not grant discovery motions with respect to discovery propounded in violation of the Code of Civil Procedure.

Conclusion

Plaintiff Melrose Equities, LLC's (1) Motion for Order Deeming Admitted Truth of Facts and Imposing Monetary Sanctions; (2) Motion to Compel Initial Responses to Form Interrogatories and Imposing Monetary Sanctions; and (3) Motion to Compel Further Responses to Special Interrogatories and Imposing Monetary Sanctions, are denied.

Plaintiff Melrose Equities, LLC's Motion to Compel Further Responses to Requests for Production and Imposing Monetary Sanctions, set for hearing on 07/01/2026, is advanced to this date and denied on the same grounds.

Moving party to give notice.